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Provision of June 6, 2024

Register of provisions

n. 338 of June 6, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of national legislation to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD TO the complaint filed by Mr. XX pursuant to Article 77 of the Regulation, in which an unlawful processing of personal data by Cappello Giovanni & figli s.r.l. was alleged.

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the secretary general pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaint submitted to the Authority and the investigative activity.

With the complaint submitted on 05/10/2021 pursuant to Article 77 of the Regulation, Mr. XX, through his lawyer Attorney XX, alleged a violation of the regulations on the protection of personal data by the company Cappello Giovanni & Figli s.r.l. (hereinafter "the Company"), consisting of unlawful processing of personal data of employees (workers in the workshop department) carried out through software called "Infinity DMS" and hardware called "X.-Face 380".

In particular, it was reported that, through the use of the management software "Infinity DMS" (installed at the production units in Modica and Ragusa), each employee is required, at the beginning of the workday, to register work performances and maintenance to be carried out, or the times and methods of intervention on the vehicles under repair assigned and the times of inactivity with specific reasons ("breaks" to indicate work stoppages, "waiting for parts", "waiting for work" to indicate delays due to work orders, "external parts retrieval" to indicate inactivity due to waiting for parts not available in stock, and others).

It was also reported that the hardware X-Face 380, also present in both production units, was installed to regulate access to the workplace through a facial recognition system.

The Authority, therefore, delegated the Privacy and Technological Fraud Protection Unit of the Guardia di Finanza to carry out inspection checks pursuant to Article 157 of the Code.

On March 1 and 2, 2022, inspection checks were carried out at the legal headquarters of the Company, located in Modica (RG), during which information regarding the use of the reported tools was acquired.

In particular, from the results of the inspection checks, it emerged that:

- the Company, which engages in the trade of motor vehicles, has about 40 employees, employed at the two operational units of Modica and Ragusa. The processing carried out through the tools Infinity DMS and X-Face 380 involves, therefore, all employees working at the two production units;
- both the software Infinity DMS and the hardware X-Face 380 have been put into use by the Company

“as work tools in order to improve the quality and efficiency of the activity carried out”;

- the company has drafted the Register of processing activities pursuant to Article 30 of the Regulation, in which all processing activities carried out in relation to each purpose are recorded;

- with specific reference to the hardware X-Face 380, it is a facial recognition system, whose purpose “is exclusively related to the processing of attendance for the preparation of payrolls for all employees, transmitting a monthly report to the CDL” (p. 3 of the minutes of 01/03/2022);

- the processing through the hardware began on 11/12/2018 and all employees were informed prior to its installation through a specific notice, prepared pursuant to Article 13 of the Regulation, and simultaneous acquisition of consent;

- regarding the technical characteristics of the hardware, it allows “the facial recognition of employees when they enter and exit the company (...) and has the following functionalities: list of present persons and printing of attendance reports for each user” (p. 3 of the minutes of 02/03/2022);

- “the employee, after reading the notice and signing the consent, is registered at the first access with the photo. (...) The image of the employee can only be visible to the employee at the time of attendance detection” (p. 3 of the cited minutes);

- “the biometric data related to the mere facial recognition of the X-Face 380 system is deleted when an employee ceases their work activity at the company” (p. 3 of the minutes).

- “Personal data is overwritten with a string of characters and once the defined retention period expires, it is permanently and irreversibly deleted” (p. 4 of the cited minutes);

- regarding the processing carried out, an impact assessment has been prepared pursuant to Article 35 of the Regulation, which is updated periodically;

- with reference to the management software called Infinity DMS, this “is used for managing accounting, warehouse, workshop, new and used vehicle sales, and CRM areas, does not provide for remote monitoring of workers assigned to the workshop department, and is a working tool used by all dealerships” (p. 4 of the minutes of 01/03/2022);

- more precisely, it is an application provided by the company Visual Software and made available to many Italian dealerships;

- the related processing began on 01/05/2013 and is profiled on the individual employee, in relation to the specific role performed in the company;

- “each mechanic is provided with a barcode that allows for marking work. The start and end of activities are carried out independently by individual employees only in the workshop areas and for the specific activities performed; the system does not perform any control over the activities carried out, but simply counts the time spent”;

- “the request to mark also to indicate breaks, waiting for parts, or cleaning the workshop falls within a parametric mapping and at the discretion of the company, which may or may not ask employees to use such reasons to declare the reason for interrupting a task (...) otherwise, hours and thus processing costs not compliant would be charged to customers”;

- every month a report containing aggregated data on the time spent by the workshops for the work carried out is sent to the parent company;

- “this information allows for analyzing the performance of the workshop department and understanding how many of the activities will be billed to customers, how many will remain at the expense of the companies, and consequently allows the ownership to adjust rates based on overall costs (...) as well as to follow and monitor the economic efficiency of the same”;

- the information notice was prepared on 11/12/2018 and is provided to employees who sign it for acknowledgment at the same time as the employment contract is signed. With subsequent notes dated 30/06/2022 and 31/10/2022, the Company, in response to specific requests for information made pursuant to Article 157 of the Code (respectively on 30/05/2022 and 30/09/2022), provided further elements to supplement what was stated during the inspection assessment. In particular, the Company represented that:

- “The cameras for biometric comparison are located at the Modica and Ragusa sites and can only operate with the active and informed participation of the interested parties”;

- “the software does not record movements and, in any case, the deletion procedures are carried out

manually as indicated in the declaration of conformity." This document, produced in the records, specifies that "the models created for recording must be kept only until the purposes of the processing are achieved and must not be stored or archived";

- regarding the data collected by the Infinity DMS management software, these "are kept for up to 10 years from the date of termination of the contractual relationship. It is specified that the collected data are not used for purposes other than that of accounting for the hours worked. It is also clarified that the reports allowed by Infinity DMS can be customized for worker, team, qualification, and statistical category."

2. The initiation of the procedure for the adoption of corrective measures and the Company's deductions.

In light of the elements collected during the investigative activity, the Office proceeded to notify the Company, on 31/01/2023, of the act initiating the sanctioning procedure pursuant to Article 166, paragraph 5, of the Code. In particular, with reference to the processing of so-called special data carried out through the X-Face 380 hardware, the violation of Articles 5, paragraph 1, letters a), b), and f), 6, paragraph 1, letter a), 9, paragraph 2, letter b), and 13 of the Regulation was notified. Meanwhile, with reference to the processing of personal data carried out through the Infinity DMS software, the violation of Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation was contested. With the defensive memoranda submitted on 02/03/2023, the Company stated that:

- "the use of this hardware [X-Face 380] became necessary due to the following events. First, the Covid-19 epidemic forced almost all economic entities to equip themselves with thermometers to measure the body temperature of those entering the premises. Secondly, the Company Cappello & Figli, in compliance with the recommendations of the parent company, adopted such tools for data processing";

- "the Company (...), as Data Controller, has always acted diligently in compliance with the provisions of Regulation (EU) No. 2016/679; more specifically, the Data Controller has prepared an appropriate privacy notice informing the interested parties of the characteristics of the processing. Consequently, the interested parties have given their explicit consent to the processing of personal data in accordance with the provisions of Article 9, paragraph 2, letter a)" of the Regulation itself;

- furthermore, "the processing of so-called special data...

carried out through the X-Face 380 hardware was done to fulfill the obligations and exercise the specific rights of the data controller or the data subject in the field of labor law in accordance with the provision of Article 9, paragraph 2, letter b, of the aforementioned Regulation (EU)";

- "The use of the Infinity DMS software and the X-FACE 380 hardware was carried out in compliance with the principles of "lawfulness, fairness, and transparency," "purpose limitation," and "data minimization"; furthermore, the data was "processed in a manner that ensures adequate security" of the same."

In requesting the archiving of the proceedings, the Company cited a ruling from the Court of Cassation, according to which "the damage from violation of the right to personal data protection does not exist in re ipsa, since the compensable harm is not identified with the mere infringement of the right protected by the legal system, but rather with the harmful consequences caused by the infringement itself, which must be alleged and proven by the victim of the unlawful act, reaching a threshold of serious and actual harm."

3. The outcome of the investigation and the proceedings for the adoption of corrective and sanctioning measures.

As a result of the examination of the statements made to the Authority during the proceedings as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations concerning its employees that are not compliant with the regulations on personal data protection.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor

and interruption of the execution of the tasks or the exercise of the powers of the Guarantor.”

3.1. Processing of special data carried out through the X-face 380 hardware.

In this regard, following the investigative activity, it was established that the Company has used a biometric system based on facial recognition since December 2018 and is still ongoing.

During the investigation, however, the initial moment when the activities of recording employee data through the acquisition of their photos began was not clarified.

The processing concerned 40 data subjects, all employees of the Company employed at the two production units in Modica and Ragusa, who received the information pursuant to Article 13 of the Regulation and gave consent to the processing of their data.

According to the statements made by the Company, the use of the biometric system is aimed at detecting the presence of employees at work and was determined by the need to improve the quality and efficiency of the service.

That said, it is noted that, in decision no. 513 of 12/11/2014 (available on the Authority's website www.gpdp.it, doc web no. 3556992), the Guarantor clarified that the processing of biometric data occurs both in the registration phase (so-called enrolment), consisting of acquiring the biometric characteristics of the data subject (in this case, the characteristics of the face), and in the biometric recognition phase to be carried out at the time of presence detection (see points 6.1, 6.2, and 6.3 of Annex A to the aforementioned decision).

According to the regulations on personal data protection, since biometric data falls under the so-called special categories of data, it is noted that their processing is generally prohibited under Article 9, paragraph 1, of the Regulation, while it is allowed only if one of the conditions indicated in paragraph 2 of the same article is met.

In particular, with regard to processing carried out in the employment context, the rule states that such processing is allowed only when it is “necessary to fulfill the obligations and exercise the specific rights of the data controller or the data subject in the field of labor law and social security and social protection, to the extent that it is authorized by Union or Member State law or by a collective agreement under the law of the Member States, in the presence of appropriate safeguards for the fundamental rights and interests of the data subject” (Article 9, paragraph 2, letter b), of the Regulation; see also: Article 88, paragraph 1) and recitals 51-53 of the Regulation).

This means that, for processing involving biometric data to be lawfully carried out, it is necessary that it finds its basis in a legal provision that has the characteristics required by the data protection regulations, also in terms of the proportionality of the regulatory intervention concerning the purposes intended to be pursued.

In this regard, Article 2-septies of the Code establishes that the processing of biometric data can be carried out in accordance with the safeguards established by the Guarantor in relation to each category of data, as well as in compliance with the conditions provided for by the aforementioned Article 9, paragraph 2, of the Regulation.

Therefore, to date, the current legal framework does not allow the processing of biometric data of employees for the purpose of detecting their presence at work. This has been reiterated by the Guarantor in numerous decisions, the latest of which were adopted on 22/02/2024, in which the Authority declared the unlawfulness of the processing carried out (decisions no. 105, 106, 107, and 109, doc. web no.

9995785, 9995701, 9995680, 9995741).

It is also noted that the employer, as the data controller, is required in any case to observe the general principles regarding the processing of personal data, including the principles of lawfulness, fairness, and transparency, the principle of minimization, and the principle of purpose limitation (Article 5, paragraph 1, letters a), b), c) of the Regulation).

In this specific case, the declaration of conformity, obtained during the proceedings and issued by the

supplier of the facial recognition device, cannot absolve the Company, which, as the data controller, should have verified the lawfulness of the processing to be carried out and compliance with the applicable principles, in light of the principle of accountability according to which “the data controller is responsible for compliance [with the principles referred to in] paragraph 1 and is able to demonstrate it” (Article 5, paragraph 2, of the Regulation).

Therefore, in light of the above reasons, it is noted that the use of biometric data for the detection of attendance at work, without, among other things, having provided for an alternative system for verifying working hours, is contrary to the principles of minimization and proportionality referred to in Article 5, paragraph 1, letter c) of the Regulation. The regulation indeed requires that the data be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

During the proceedings, the Company did not produce any documentation that could demonstrate the necessity and proportionality of the processing carried out in relation to the purposes to be pursued, limiting itself to abstractly invoking the principles and provisions of the Regulation.

Also concerning the retention of the collected data, it is observed that from the examination of the documentation produced (in particular, the Declaration of Conformity issued by company XX, attachment 3 to the note of 30/06/2022) as well as the statements made during the inspection (minutes of operations of 02/03/2022, page 3), it appears that the biometric data related to the employee is deleted by the Company only after the termination of the employment relationship.

This is in contrast to what was established by the Authority in the aforementioned provision of 12/11/2014, which states that “the biometric samples used in the creation of the biometric model may only be processed during the registration and acquisition phases necessary for biometric comparison, and must not be stored except for the time strictly necessary for the generation of the model itself” (see point 8.5 of Annex A).

This provision, although approved with reference to the previous legal framework, is still valid in its general lines and compliant with the principles and provisions of the Regulation.

Therefore, this processing is not compliant with the principle of storage limitation referred to in Article 5, paragraph 1, letter e), of the Regulation, which, on the contrary, imposes that data be retained for no longer than necessary to achieve the purposes for which they were collected.

Moreover, contrary to what the Company believes, within the employment relationship, the consent expressed by employees cannot be considered a suitable basis for lawfulness, in light of the asymmetry between the respective parties of the employment relationship and the consequent, eventual, necessity to ascertain from time to time and in concrete terms the actual freedom of the expressed consent (see decisions no. 16 of 14/01/2021 web doc no. 9542071, no. 35 of 13/02/2020, web doc no. 9285411, no. 500 of 13/12/2018, web doc no. 9068983).

It is therefore established that the processing of biometric data of employees has been carried out by the Company in the absence of an adequate legal basis, in violation of Article 9, paragraph 2, letter b), of the Regulation.

From the examination of the acquired documentation, it has also emerged that the information provided by the Company is deficient and inadequate to fully represent the main characteristics of the processing.

In the document produced in the records, in fact, there is a lack of any reference not only, as mentioned, to the main characteristics of the processing but also to the safeguards adopted, to the mandatory or voluntary nature of the provision of the data, in relation to the pursued purpose, and to the possibility of using, as an alternative to the biometric system, the traditional badge-based system. In this regard, it is noted that the Authority has reiterated on several occasions that the employer, in application of the principle of transparency, has the obligation to inform its employees and collaborators about the essential characteristics of the data processing carried out in the context of the employment relationship as well as the tools through which the processing is carried out, in accordance with what is specifically indicated by Article 13 of the Regulation. This also considering that, within the employment relationship, the obligation to inform the employee is also an expression of the duty of fairness (Article 5, paragraph 1, letter a) of the Regulation).

In light of the above, it is established that the Company has carried out the processing of biometric

data in violation of Articles 5, paragraph 1, letters a), c), e), 9, paragraph 2, letter b), and 13 of the Regulation.

3.2. Processing of personal data through the Infinity DMS software.

From the examination of the acquired documentation, it has also emerged that the Company has been processing personal data of employees through a management software since January 2018.

This tool, based on what has been stated, would be

"tax" to the dealership from the parent company to which a report containing aggregated data on the time taken by the workshops for the work performed is sent monthly.

In particular, from the checks carried out on March 1 and 2, 2022, it was found that employees, through an individually assigned barcode, are required to register in the management system the various phases of their work activity, including breaks, with an indication of the specific reason (e.g., rest, waiting for spare parts, etc.). The software also allows for the collection and processing of personal data related to the workshop's customers (to whom information is provided, acquired in records) and information regarding the type of interventions carried out on the vehicles, the latter being entered by the employees.

The Company has prepared the register of processing activities, pursuant to Article 30 of the Regulation, from which it was possible to deduce the main purposes pursued, through the management system Infinity DMS, consisting in particular of the management of accounting and financial processes, the preparation of estimates, and the execution of contracts in general.

However, it should be noted that, in response to repeated requests from the Authority to know in detail the essential characteristics of the management system used (see the requests made on 31/05/2022 and 30/09/2022), the Company provided very generic and evasive responses without allowing the Authority to have full knowledge of the processing carried out, to know the nature and type of data processed, the methods and times of data retention, and to assess their actual necessity and proportionality with respect to the purposes to be pursued.

Moreover, such information was not made known even to the employees, to whom an information notice was provided that appears incomplete and inadequate to fully represent the processing carried out.

In fact, in the information notice acquired in records, which refers to all the processing carried out by the Company, it merely states that "in carrying out the processing activities, the Company undertakes to ensure the accuracy and updating of the processed data (...); to process the personal data acquired in full compliance with the principles of correctness, lawfulness, and transparency" (Annex 2 to the minutes of 01/03/2022).

This is also considering that within the employment relationship, the obligation to inform the employee is an expression of the duty of correctness (Article 5, paragraph 1, letter a) of the Regulation). Similarly, a suitable legal basis among those listed in Article 6 of the Regulation cannot be found in the documents produced in records, primarily in the information notice.

In fact, even during the inspection assessment, the Company limited itself to stating that "the evaluations that led to the purchase of the Infinity DMS software and the X-face 380 hardware are primarily aimed at raising, as desired by the parent company, the qualitative standards of the company (...)" (page 4 of the minutes of operations carried out).

Therefore, as a result of the assessments carried out based on the statements made and the documentation acquired, it emerges that the processing was carried out by the Company in violation of the principles of lawfulness, correctness, and transparency referred to in Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

For the reasons stated above, the Authority believes that the statements, documentation, and

reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the archiving of this procedure, as none of the cases provided for in Article 11 of the Garante Regulation No. 1/2019 apply.

The processing of personal data carried out by the Company and, in particular, the processing of personal and biometric data (facial recognition) related to its employees for the purpose of attendance detection, is unlawful, as stated above, in relation to Articles 5, paragraph 1, letters a), c), e), 9, paragraph 2, letter b), and 13 of the Regulation.

The processing of personal data of employees has also occurred in violation of Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation.

The violation established in the terms of the reasoning cannot be considered "minor," taking into account the nature of the violation that concerned the general principles and conditions of lawfulness of the processing of particular data as well as the seriousness of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, considering the circumstances of the specific case:

- an administrative monetary sanction is imposed pursuant to Article 83 of the Regulation;
- a prohibition on the processing of biometric data of employees is imposed, pursuant to Article 58, paragraph 2, letter f) of the Regulation;
- the Company is ordered to align the processing of data carried out through the management software Infinity DMS with the provisions and general principles regarding the processing of personal data.

5. Adoption of the injunction order for

the application of the administrative pecuniary sanction and accessory sanctions (art. 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code).

At the conclusion of the proceedings, it is established that Cappello Giovanni & Figli s.r.l. has carried out two distinct data processing activities, violating respectively arts. 5, par. 1, lett. a), c), e), 9, par. 2, lett. b), 13 and arts. 5, par. 1, lett. a), 6, 13 of the Regulation.

For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by art. 83, par. 4, lett. a) and par. 5, lett. a) and b) of the Regulation is foreseen, through the adoption of an injunction order (art. 18, l. 24.11.1981, n. 689).

It is deemed unnecessary to apply, in this specific case, paragraph 3 of art. 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same art. 83, par. 5.

With reference to the elements listed in art. 83, par. 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must "in each individual case [be] effective, proportionate and dissuasive" (art. 83, par. 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been considered:

- a. in relation to the nature, severity, and duration of the violation, the nature of the violation concerning the general principles and conditions of lawfulness of the processing and the processing of particular biometric data using facial recognition technology has been considered against the Company; the duration of the violation, which is still ongoing, has also been considered against the Company;
- b. with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the conduct of the Company and its degree of responsibility have been taken into account, as it did not comply with the regulations on data protection concerning a plurality of

provisions;

c. account has been taken of the poor cooperation with the Supervisory Authority and the continuation of the processing even after the initiation of the proceedings.

It is also believed that the economic conditions of the offender are relevant in this specific case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation), primarily determined based on the revenues obtained by the Company with reference to the ordinary financial statements for the year 2022. Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the above elements and the evaluations made, it is deemed appropriate, in this specific case, to apply to Cappello Giovanni e Figli s.r.l. the administrative sanction of payment of an amount equal to €120,000.00 (one hundred twenty thousand).

In this context, it is also deemed appropriate, considering the type of violations established that concerned the general principles and conditions of lawfulness of the processing, that pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Regulation of the Guarantor n. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is also believed that the conditions referred to in art. 17 of Regulation n. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the unlawfulness of the processing carried out by Cappello Giovanni & Figli s.r.l., represented by the legal representative pro tempore, based in Modica (RG), Via Sorda Samperi 128/A, C.F. 01238300881, for the violations of arts. 5, par. 1, lett. a), c), e), 9, par. 2, lett. b), 13 (regarding the processing of biometric data) and arts. 5, par. 1, lett. a), 6, 13 of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, Cappello Giovanni & Figli s.r.l. to pay the sum of €120,000.00 (one hundred twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

pursuant to art. 58, par. 2, lett. d) of the Regulation, to bring the data processing carried out through the Infinity DMS management software into compliance with the provisions and general principles regarding the processing of personal data as outlined in the reasoning within 90 days from the date of notification of this provision;

pursuant to art. 58, par. 2, lett. f), of the Regulation, the prohibition of processing the biometric data of employees through the facial recognition system.

ORDERS

the same Company to pay the aforementioned sum of €120,000.00 (one hundred twenty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law n. 689/1981.

It is reminded that the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term referred to in art.

10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011

provided for the submission of the appeal as indicated below (art. 166, paragraph 8, of the Code);

ORDERS

the publication of this provision on the website of the Authority pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority No. 1/20129, and considers that the conditions referred to in art. 17 of Regulation No. 1/2019 are met.

Requests the Company to communicate what initiatives have been undertaken in order to implement the provisions of this decision and to provide adequately documented feedback pursuant to art. 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by art. 83, paragraph 5, letter e) of

the Regulation.

Pursuant to art. 78 of the Regulation, as well as articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the provision itself, or within sixty days if the appellant resides abroad.

Rome, June 6, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei